

The State, etc.

On Court's query, learned Deputy Prosecutor General under instructions of police official (present before the Court) and after himself going through the available record apprises that on 12.08.2024 Shahzad Amjad (complainant) nominated present petitioner through supplementary statement while mentioning

therein that he got registered case against unknown accused persons, has been searching for the accused persons of his own, now he is having suspicion on Kashif Shehzad with whom he has close relationship (اب مجھے مسمی کاشف شہزاد پر شک گزرا چونکہ ہماری), Muhammad Kashif Shehzad went to related person namely Altaf son of Ghulam Habib with whom at that time Kamran Hayat son of Khizar Hayat was also present there, Kashif Shehzad said to Altaf that he was having suspicion that Waqas Amjad talks to his mother on phone whereas his friendship was with younger brother of Waqas Amjad who refrained his brother to stop talking with him, he called his relative namely Majid and fired shots at Waqas Amjad, his fire shot hit Waqas Amjad whereas shot fired by Majid went ineffective (خطا), he was having suspicion that Waqas Amjad has identified them and asked for pardon from complainant party; Altaf and Kamran Hayat told aforementioned facts to the complainant. Learned Deputy Prosecutor General further submits that Altaf and Kamran Hayat also got recorded their statements to the investigating officer under Section: 161 Cr.P.C. in support of aforementioned supplementary statement of the complainant; further adds that Waqas Amjad also got recorded his statement to the investigating officer; also submits that Waqas Amjad first got recorded his statement under Section: 161 Cr.P.C. on 23.07.2024 which was according to the contents of the First Information Report and he did not nominate any accused in the same, however, after recording aforementioned supplementary statement of complainant, Waqas Amjad (injured) also got recorded his further statement on 12.08.2024 while mentioning therein that he was having suspicion from the day one that Kashif Shehzad has fired shots at him as he was suspecting that he (Waqas Amjad) was having contact with his mother but due to fear and shame (شرم), he did not mention name of Kashif Shehzad at the spot and subsequently they have attained the satisfaction that Kashif Shehzad after suspecting that he (Waqas Amjad) has identified him, has made confession before Altaf and Shahzad Amjad;

further apprises that when Waqas Amjad was taken in injured condition to the hospital, he was vitally stable as per his Medico-Legal Examination Certificate and there is one entry wound and one exit wound on the body of Waqas Amjad (injured). Occurrence in this case took place on 23.07.2024 and case was also registered on the same day i.e. 23.07.2024. Petitioner is not nominated in the F.I.R. rather he was nominated through supplementary statement got recorded with considerable delay i.e. on 12.08.2024; similarly injured of the case was vitally stable when he was brought in the hospital as per Medico-Legal Examination Certificate but he did not nominate petitioner in his first statement got recorded on 23.07.2024 rather he got recorded statement that occurrence was committed by two unknown accused persons, however, after recording of supplementary statement by the complainant he (Waqas Amjad, injured) also made supplementary statement on 12.08.2024 while nominating present petitioner as an accused. As per first information report, two fire shots hit Waqas Amjad (injured) whereas Medico-Legal Examination Certificate of Waqas Amjad reflects that he received entry wound below the umbilicus on right mid clavicular line whereas exit wound is on upper outermost (lateral) region of right gluteus just along the line of right anterior superior iliac spine.

Though pistol was recovered from the petitioner, however, any report of Forensic Science Agency regarding matching of empties secured from the place of occurrence with said pistol is still awaited as apprised by learned Deputy Prosecutor General.

When both the parties i.e. petitioner and complainant are related to each other (as mentioned in aforementioned supplementary statement), then not nominating the petitioner by the complainant in the F.I.R. as well as in first statement of injured rather nominating petitioner as an accused in the case with considerable delay (as detailed above) raises eyebrows and in such circumstances supplementary statement of the complainant, supplementary statement of Waqas Amjad (injured) and statements of Altaf and Kamran Hayat require evidential verification during trial of the case and case of prosecution to the extent of present petitioner, at

present, requires further probe/inquiry within the purview of sub-Section: (2) of Section: 497 Cr.P.C., in this regard, guidance has been sought from the cases of **“LAL MARJAN and another versus ISLAM GUL and others”** (2021 S C M R 301), **“HAIDER ALI versus The STATE and others”** (2021 S C M R 629), **“HUSNAIN MUSTAFA versus The STATE and another”** (2019 S C M R 1914) and **“NOOR MUHAMMAD versus The STATE and another”** (2020 S C M R 1049).

Petitioner was arrested in the case on 28.08.2024, sent to jail on 31.08.2024 where he is confined till now; in aforementioned circumstances, mere detention of the petitioner in lockup for an indefinite period would not serve any useful purpose to the case of prosecution. Bail cannot be withheld as advance punishment.

By now it is also well settled that it is better to err in granting bail than to err in refusal because ultimate conviction and sentence can repair the wrong resulted by a mistaken relief of bail; in this regard, case of **“CHAIRMAN, NATIONAL ACCOUNTABILITY BUREAU through P.G., NAB versus NISAR AHMED PATHAN and others”** (PLD 2022 Supreme Court 475) can be advantageously referred and its relevant portion from Page No(s). 480-481 is reproduced: -

“To err in granting bail is better than to err in declining; for the ultimate conviction and sentence of a guilty person can repair the wrong caused by a mistaken relief of bail, but no satisfactory reparation can be offered to an innocent person on his acquittal for his unjustified imprisonment during the trial.”

When all the aforementioned factors are taken into consideration in totality then case for grant of post-arrest bail to the petitioner has been made out.

3. In view of what has been discussed above, instant petition filed by the petitioner for grant of post-arrest bail is **accepted** and he is admitted to bail in the case subject to his furnishing bail bonds in the sum of Rs.3,00,000/- (Rupees three hundred thousand only) with two sureties each in the like amount to the satisfaction of trial court.

4. It goes without saying that observations mentioned above are just tentative in nature, strictly confined to the disposal of instant bail petition and will have no bearing upon trial of the case, which

will be concluded by the trial court expeditiously. Needless to add that if petitioner or anybody else acting on his behalf creates any hurdle in the way of conclusion of trial, then state as well as complainant would be at liberty to move this Court for recalling of this order.

(Farooq Haider)
Judge

Approved for reporting.

(Farooq Haider)
Judge

This order has been dictated,
pronounced, prepared and
signed on 11.03.2025.

**Jftikhar*